



Bill Number: S.B. 1347

Werner SUB Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires standard fertility preservation services insurance coverage to include at least three plan years of storage.
2. Stipulates that, if an insured changes insurance plans during the three-year storage period, the prior health insurer and the new health insurer are not responsible for the three plan years of storage.
3. Removes the prohibition against health insurers requiring prior authorization for standard fertility preservation services and instead requires a health insurer to process prior authorization requests for such services as urgent and to respond within 72 hours on request.
4. Specifies that the medically necessary treatment must be likely to cause iatrogenic infertility in order for the standard fertility preservation services to be covered.
5. Redefines *religious employer* and *iatrogenic infertility*.
6. Adds a delayed effective date of January 1, 2028.

WERNER SUBSTITUTE FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1347

I move the following SUBSTITUTE amendment to the FINANCE Committee Amendment to
SENATE BILL 1347 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or
previously enacted session law.

[Green underlining in brackets] indicates text added to new session law
or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute
or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute,
previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 20, chapter 4, article 3, Arizona Revised
3 Statutes, is amended by adding section 20-841.14, to read:

4 20-841.14. Fertility preservation coverage; requirements;
5 religious employer; exemption; definitions

6 A. A HOSPITAL SERVICE CORPORATION OR MEDICAL SERVICE CORPORATION
7 THAT ISSUES, AMENDS OR RENEWS A SUBSCRIPTION CONTRACT ON OR AFTER JANUARY
8 1, 2027 SHALL PROVIDE COVERAGE FOR STANDARD FERTILITY PRESERVATION
9 SERVICES TO A SUBSCRIBER WHO IS WITHIN REPRODUCTIVE AGE, WHO IS DIAGNOSED
10 WITH CANCER AND WHOSE MEDICALLY NECESSARY TREATMENT ~~[MAY]~~ [IS LIKELY TO]
11 DIRECTLY OR INDIRECTLY CAUSE IATROGENIC INFERTILITY. [COVERAGE FOR
12 STANDARD FERTILITY PRESERVATION SERVICES MUST INCLUDE AT LEAST THREE PLAN
13 YEARS OF STORAGE. IF A SUBSCRIBER CHANGES INSURANCE PLANS DURING THE
14 THREE-YEAR PERIOD, THE PRIOR HOSPITAL SERVICE CORPORATION OR THE MEDICAL
15 SERVICE CORPORATION THAT PROVIDED COVERAGE AND THE NEW INSURER ARE NOT
16 RESPONSIBLE FOR THE THREE PLAN YEARS OF STORAGE.]

17 B. A HOSPITAL SERVICE CORPORATION OR MEDICAL SERVICE CORPORATION
18 ~~[MAY NOT REQUIRE PREAUTHORIZATION FOR STANDARD FERTILITY PRESERVATION~~
19 ~~SERVICES. A SUBSCRIPTION CONTRACT MAY CONTAIN PROVISIONS FOR MAXIMUM~~
20 ~~BENEFITS AND MAY REQUIRE THAT STANDARD FERTILITY PRESERVATION SERVICES BE~~
21 ~~SUBJECT TO THE SAME DEDUCTIBLES, COPAYMENTS, COINSURANCE AND REASONABLE~~
22 ~~LIMITATIONS AND EXCLUSIONS THAT ARE CONSISTENT WITH THIS SECTION] [SHALL~~
23 PROCESS PRIOR AUTHORIZATION REQUESTS FOR STANDARD FERTILITY PRESERVATION
24 SERVICES AS URGENT AND RESPOND WITHIN SEVENTY-TWO HOURS ON REQUEST].

25 C. A RELIGIOUS EMPLOYER MAY SUBMIT A WRITTEN REQUEST FOR AN
26 EXEMPTION FROM THE REQUIREMENTS OF THIS SECTION TO A HOSPITAL SERVICE
27 CORPORATION OR MEDICAL SERVICE CORPORATION, AND THE HOSPITAL SERVICE

1 CORPORATION OR MEDICAL SERVICE CORPORATION SHALL GRANT THE EXEMPTION IF
2 THE COVERAGE REQUIRED BY THIS SECTION CONFLICTS WITH THE EMPLOYER'S
3 RELIGIOUS BELIEFS. A RELIGIOUS EMPLOYER THAT OBTAINS AN EXEMPTION SHALL
4 PROVIDE WRITTEN NOTICE OF THE EXEMPTION TO PROSPECTIVE SUBSCRIBERS.

5 D. THIS SECTION DOES NOT PREVENT A SUBSCRIBER FROM PURCHASING A
6 SUPPLEMENTAL INSURANCE POLICY THAT COVERS STANDARD FERTILITY PRESERVATION
7 SERVICES AT THE SUBSCRIBER'S OWN EXPENSE.

8 E. FOR THE PURPOSES OF THIS SECTION:

9 1. "IATROGENIC INFERTILITY" MEANS AN IMPAIRMENT OF FERTILITY THAT
10 IS CAUSED DIRECTLY OR INDIRECTLY BY ~~[SURGERY, CHEMOTHERAPY, RADIATION OR~~
11 ~~OTHER MEDICAL TREATMENT THAT HAS A POTENTIAL SIDE EFFECT OF IMPAIRED~~
12 ~~FERTILITY AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR~~
13 ~~THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE]~~ [MEDICALLY NECESSARY
14 TREATMENT FOR CANCER, SICKLE CELL DISEASE OR LUPUS].

15 2. "RELIGIOUS EMPLOYER" ~~[MEANS AN EMPLOYER THAT BOTH]:~~

16 ~~[(a) IS A CHURCH, A CONVENTION OR ASSOCIATION OF CHURCHES OR AN~~
17 ~~ELEMENTARY OR SECONDARY SCHOOL THAT IS CONTROLLED, OPERATED OR PRINCIPALLY~~
18 ~~SUPPORTED BY A CHURCH OR BY A CONVENTION OR ASSOCIATION OF CHURCHES.~~

19 ~~(b) QUALIFIES AS A TAX-EXEMPT ORGANIZATION UNDER SECTION 501(c)(3)~~
20 ~~OF THE UNITED STATES INTERNAL REVENUE CODE.]~~

21 [(a) MEANS A NONGOVERNMENTAL PLAN SPONSOR OR ENTITY THAT, BASED ON
22 SINCERELY HELD RELIGIOUS BELIEFS, OBJECTS TO THE SPONSOR OR ENTITY
23 ESTABLISHING, MAINTAINING, PROVIDING, OFFERING OR ARRANGING FOR COVERAGE
24 OF STANDARD FERTILITY PRESERVATION SERVICES.

25 (b) INCLUDES:

26 (i) A CHURCH, AN INTEGRATED AUXILIARY OF A CHURCH, A CONVENTION OR
27 ASSOCIATION OF CHURCHES OR A RELIGIOUS ORDER.

28 (ii) A NONPROFIT ORGANIZATION.

29 (iii) A CLOSELY HELD FOR-PROFIT ENTITY.

30 (iv) A FOR-PROFIT ENTITY THAT IS NOT CLOSELY HELD.

31 (v) ANY OTHER NONGOVERNMENTAL EMPLOYER.]

32 3. "REPRODUCTIVE AGE" MEANS THE AGE RANGE IN WHICH AN INDIVIDUAL IS
33 DEEMED FERTILE AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY
34 OR THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE.

35 4. "STANDARD FERTILITY PRESERVATION SERVICES":

36 (a) MEANS:

37 (i) OOCYTE AND SPERM PRESERVATION PROCEDURES THAT ARE CONSISTENT
38 WITH ESTABLISHED MEDICAL PRACTICES OR PROFESSIONAL GUIDELINES PUBLISHED BY
39 THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR THE AMERICAN SOCIETY FOR
40 REPRODUCTIVE MEDICINE.

41 (ii) THE STORAGE FOR AT LEAST THREE [PLAN] YEARS OF PRESERVED
42 OVARIAN TISSUE, SPERM AND OOCYTE.

43 (b) INCLUDES CRYOPRESERVATION OF ANY OF THE FOLLOWING:

44 (i) OVARIAN TISSUE.

45 (ii) SPERM.

46 (iii) OOCYTE.

1 Sec. 2. Title 20, chapter 4, article 9, Arizona Revised Statutes,
2 is amended by adding section 20-1057.21, to read:

3 20-1057.21. Fertility preservation coverage; requirements;
4 religious employer; exemption; definitions

5 A. A HEALTH CARE SERVICES ORGANIZATION THAT ISSUES, AMENDS OR
6 RENEWS AN EVIDENCE OF COVERAGE ON OR AFTER JANUARY 1, 2027 SHALL PROVIDE
7 COVERAGE FOR STANDARD FERTILITY PRESERVATION SERVICES TO AN ENROLLEE WHO
8 IS WITHIN REPRODUCTIVE AGE, WHO IS DIAGNOSED WITH CANCER AND WHOSE
9 MEDICALLY NECESSARY TREATMENT ~~[MAY]~~ [IS LIKELY TO] DIRECTLY OR INDIRECTLY
10 CAUSE IATROGENIC INFERTILITY. [COVERAGE FOR STANDARD FERTILITY
11 PRESERVATION SERVICES MUST INCLUDE AT LEAST THREE PLAN YEARS OF STORAGE.
12 IF AN ENROLLEE CHANGES INSURANCE PLANS DURING THE THREE-YEAR PERIOD. THE
13 PRIOR HEALTH CARE SERVICES ORGANIZATION THAT PROVIDED COVERAGE AND THE NEW
14 INSURER ARE NOT RESPONSIBLE FOR THE THREE PLAN YEARS OF STORAGE.]

15 B. A HEALTH CARE SERVICES ORGANIZATION ~~[MAY NOT REQUIRE~~
16 ~~PREAUTHORIZATION FOR STANDARD FERTILITY PRESERVATION SERVICES. AN~~
17 ~~EVIDENCE OF COVERAGE MAY CONTAIN PROVISIONS FOR MAXIMUM BENEFITS AND MAY~~
18 ~~REQUIRE THAT STANDARD FERTILITY PRESERVATION SERVICES BE SUBJECT TO THE~~
19 ~~SAME DEDUCTIBLES, COPAYMENTS, COINSURANCE AND REASONABLE LIMITATIONS AND~~
20 ~~EXCLUSIONS THAT ARE CONSISTENT WITH THIS SECTION]~~ [SHALL PROCESS PRIOR
21 AUTHORIZATION REQUESTS FOR STANDARD FERTILITY PRESERVATION SERVICES AS
22 URGENT AND RESPOND WITHIN SEVENTY-TWO HOURS ON REQUEST].

23 C. A RELIGIOUS EMPLOYER MAY SUBMIT A WRITTEN REQUEST FOR AN
24 EXEMPTION FROM THE REQUIREMENTS OF THIS SECTION TO A HEALTH CARE SERVICES
25 ORGANIZATION, AND THE HEALTH CARE SERVICES ORGANIZATION SHALL GRANT THE
26 EXEMPTION IF THE COVERAGE REQUIRED BY THIS SECTION CONFLICTS WITH THE
27 EMPLOYER'S RELIGIOUS BELIEFS. A RELIGIOUS EMPLOYER THAT OBTAINS AN
28 EXEMPTION SHALL PROVIDE WRITTEN NOTICE OF THE EXEMPTION TO PROSPECTIVE
29 ENROLLEES.

30 D. THIS SECTION DOES NOT PREVENT AN ENROLLEE FROM PURCHASING A
31 SUPPLEMENTAL INSURANCE POLICY THAT COVERS STANDARD FERTILITY PRESERVATION
32 SERVICES AT THE ENROLLEE'S OWN EXPENSE.

33 E. FOR THE PURPOSES OF THIS SECTION:

34 1. "IATROGENIC INFERTILITY" MEANS AN IMPAIRMENT OF FERTILITY THAT
35 IS CAUSED DIRECTLY OR INDIRECTLY BY ~~[SURGERY, CHEMOTHERAPY, RADIATION OR~~
36 ~~OTHER MEDICAL TREATMENT THAT HAS A POTENTIAL SIDE EFFECT OF IMPAIRED~~
37 ~~FERTILITY AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR~~
38 ~~THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE]~~ [A MEDICALLY NECESSARY
39 TREATMENT FOR CANCER, SICKLE CELL DISEASE OR LUPUS].

40 2. "RELIGIOUS EMPLOYER" ~~[MEANS AN EMPLOYER THAT BOTH]:~~

41 ~~[(a) IS A CHURCH, A CONVENTION OR ASSOCIATION OF CHURCHES OR AN~~
42 ~~ELEMENTARY OR SECONDARY SCHOOL THAT IS CONTROLLED, OPERATED OR PRINCIPALLY~~
43 ~~SUPPORTED BY A CHURCH OR BY A CONVENTION OR ASSOCIATION OF CHURCHES.~~

44 ~~[(b) QUALIFIES AS A TAX-EXEMPT ORGANIZATION UNDER SECTION 501(c)(3)~~
45 ~~OF THE UNITED STATES INTERNAL REVENUE CODE.]~~

46 [(a) MEANS A NONGOVERNMENTAL PLAN SPONSOR OR ENTITY THAT, BASED ON
47 SINCERELY HELD RELIGIOUS BELIEFS, OBJECTS TO THE SPONSOR OR ENTITY

1 ESTABLISHING, MAINTAINING, PROVIDING, OFFERING OR ARRANGING FOR COVERAGE
2 OF STANDARD FERTILITY PRESERVATION SERVICES.

3 (b) INCLUDES:

4 (i) A CHURCH, AN INTEGRATED AUXILIARY OF A CHURCH, A CONVENTION OR
5 ASSOCIATION OF CHURCHES OR A RELIGIOUS ORDER.

6 (ii) A NONPROFIT ORGANIZATION.

7 (iii) A CLOSELY HELD FOR-PROFIT ENTITY.

8 (iv) A FOR-PROFIT ENTITY THAT IS NOT CLOSELY HELD.

9 (v) ANY OTHER NONGOVERNMENTAL EMPLOYER.]

10 3. "REPRODUCTIVE AGE" MEANS THE AGE RANGE IN WHICH AN INDIVIDUAL IS
11 DEEMED FERTILE AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY
12 OR THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE.

13 4. "STANDARD FERTILITY PRESERVATION SERVICES":

14 (a) MEANS:

15 (i) OOCYTE AND SPERM PRESERVATION PROCEDURES THAT ARE CONSISTENT
16 WITH ESTABLISHED MEDICAL PRACTICES OR PROFESSIONAL GUIDELINES PUBLISHED BY
17 THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR THE AMERICAN SOCIETY FOR
18 REPRODUCTIVE MEDICINE.

19 (ii) THE STORAGE FOR AT LEAST THREE [PLAN] YEARS OF PRESERVED
20 OVARIAN TISSUE, SPERM AND OOCYTE.

21 (b) INCLUDES CRYOPRESERVATION OF ANY OF THE FOLLOWING:

22 (i) OVARIAN TISSUE.

23 (ii) SPERM.

24 (iii) OOCYTE.

25 Sec. 3. Title 20, chapter 6, article 4, Arizona Revised Statutes,
26 is amended by adding section 20-1376.11, to read:

27 20-1376.11. Fertility preservation coverage; requirements;
28 religious employer; exemption; definitions

29 A. A DISABILITY INSURER THAT ISSUES, AMENDS OR RENEWS A POLICY ON
30 OR AFTER JANUARY 1, 2027 SHALL PROVIDE COVERAGE FOR STANDARD FERTILITY
31 PRESERVATION SERVICES TO AN INSURED WHO IS WITHIN REPRODUCTIVE AGE, WHO IS
32 DIAGNOSED WITH CANCER AND WHOSE MEDICALLY NECESSARY TREATMENT [MAY] [IS
33 LIKELY TO] DIRECTLY OR INDIRECTLY CAUSE IATROGENIC INFERTILITY. [COVERAGE
34 FOR STANDARD FERTILITY PRESERVATION SERVICES MUST INCLUDE AT LEAST THREE
35 PLAN YEARS OF STORAGE. IF AN INSURED CHANGES INSURANCE PLANS DURING THE
36 THREE-YEAR PERIOD, THE PRIOR DISABILITY INSURER THAT PROVIDED COVERAGE AND
37 THE NEW INSURER ARE NOT RESPONSIBLE FOR THE THREE PLAN YEARS OF STORAGE.]

38 B. A DISABILITY INSURER [MAY NOT REQUIRE PREAUTHORIZATION FOR
39 STANDARD FERTILITY PRESERVATION SERVICES. A POLICY MAY CONTAIN PROVISIONS
40 FOR MAXIMUM BENEFITS AND MAY REQUIRE THAT STANDARD FERTILITY PRESERVATION
41 SERVICES BE SUBJECT TO THE SAME DEDUCTIBLES, COPAYMENTS, COINSURANCE AND
42 REASONABLE LIMITATIONS AND EXCLUSIONS THAT ARE CONSISTENT WITH THIS
43 SECTION] [SHALL PROCESS PRIOR AUTHORIZATION REQUESTS FOR STANDARD
44 FERTILITY PRESERVATION SERVICES AS URGENT AND RESPOND WITHIN SEVENTY-TWO
45 HOURS ON REQUEST].

46 C. A RELIGIOUS EMPLOYER MAY SUBMIT A WRITTEN REQUEST FOR AN
47 EXEMPTION FROM THE REQUIREMENTS OF THIS SECTION TO A DISABILITY INSURER,

1 AND THE DISABILITY INSURER SHALL GRANT THE EXEMPTION IF THE COVERAGE
2 REQUIRED BY THIS SECTION CONFLICTS WITH THE EMPLOYER'S RELIGIOUS BELIEFS.
3 A RELIGIOUS EMPLOYER THAT OBTAINS AN EXEMPTION SHALL PROVIDE WRITTEN
4 NOTICE OF THE EXEMPTION TO PROSPECTIVE INSURED.

5 D. THIS SECTION DOES NOT PREVENT AN INSURED FROM PURCHASING A
6 SUPPLEMENTAL INSURANCE POLICY THAT COVERS STANDARD FERTILITY PRESERVATION
7 SERVICES AT THE INSURED'S OWN EXPENSE.

8 E. FOR THE PURPOSES OF THIS SECTION:

9 1. "IATROGENIC INFERTILITY" MEANS AN IMPAIRMENT OF FERTILITY THAT
10 IS CAUSED DIRECTLY OR INDIRECTLY BY ~~[SURGERY, CHEMOTHERAPY, RADIATION OR~~
11 ~~OTHER MEDICAL TREATMENT THAT HAS A POTENTIAL SIDE EFFECT OF IMPAIRED~~
12 ~~FERTILITY AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR~~
13 ~~THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE]~~ [MEDICALLY NECESSARY
14 TREATMENT FOR CANCER, SICKLE CELL DISEASE OR LUPUS].

15 2. "RELIGIOUS EMPLOYER" ~~[MEANS AN EMPLOYER THAT BOTH]:~~

16 ~~[(a) IS A CHURCH, A CONVENTION OR ASSOCIATION OF CHURCHES OR AN~~
17 ~~ELEMENTARY OR SECONDARY SCHOOL THAT IS CONTROLLED, OPERATED OR PRINCIPALLY~~
18 ~~SUPPORTED BY A CHURCH OR BY A CONVENTION OR ASSOCIATION OF CHURCHES.~~

19 ~~(b) QUALIFIES AS A TAX-EXEMPT ORGANIZATION UNDER SECTION 501(c)(3)~~
20 ~~OF THE UNITED STATES INTERNAL REVENUE CODE.]~~

21 [(a) MEANS A NONGOVERNMENTAL PLAN SPONSOR OR ENTITY THAT, BASED ON
22 SINCERELY HELD RELIGIOUS BELIEFS, OBJECTS TO THE SPONSOR OR ENTITY
23 ESTABLISHING, MAINTAINING, PROVIDING, OFFERING OR ARRANGING FOR COVERAGE
24 OF STANDARD FERTILITY PRESERVATION SERVICES.

25 (b) INCLUDES:

26 (i) A CHURCH, AN INTEGRATED AUXILIARY OF A CHURCH, A CONVENTION OR
27 ASSOCIATION OF CHURCHES OR A RELIGIOUS ORDER.

28 (ii) A NONPROFIT ORGANIZATION.

29 (iii) A CLOSELY HELD FOR-PROFIT ENTITY.

30 (iv) A FOR-PROFIT ENTITY THAT IS NOT CLOSELY HELD.

31 (v) ANY OTHER NONGOVERNMENTAL EMPLOYER.]

32 3. "REPRODUCTIVE AGE" MEANS THE AGE RANGE IN WHICH AN INDIVIDUAL IS
33 DEEMED FERTILE AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY
34 OR THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE.

35 4. "STANDARD FERTILITY PRESERVATION SERVICES":

36 (a) MEANS:

37 (i) OOCYTE AND SPERM PRESERVATION PROCEDURES THAT ARE CONSISTENT
38 WITH ESTABLISHED MEDICAL PRACTICES OR PROFESSIONAL GUIDELINES PUBLISHED BY
39 THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR THE AMERICAN SOCIETY FOR
40 REPRODUCTIVE MEDICINE.

41 (ii) THE STORAGE FOR AT LEAST THREE [PLAN] YEARS OF PRESERVED
42 OVARIAN TISSUE, SPERM AND OOCYTE.

43 (b) INCLUDES CRYOPRESERVATION OF ANY OF THE FOLLOWING:

44 (i) OVARIAN TISSUE.

45 (ii) SPERM.

46 (iii) OOCYTE.

1 Sec. 4. Title 20, chapter 6, article 5, Arizona Revised Statutes,
2 is amended by adding section 20-1406.11, to read:

3 20-1406.11. Fertility preservation coverage; requirements;
4 religious employer; exemption; definitions

5 A. A GROUP OR BLANKET DISABILITY INSURER THAT ISSUES, AMENDS OR
6 RENEWS A POLICY ON OR AFTER JANUARY 1, 2027 SHALL PROVIDE COVERAGE FOR
7 STANDARD FERTILITY PRESERVATION SERVICES TO AN INSURED WHO IS WITHIN
8 REPRODUCTIVE AGE, WHO IS DIAGNOSED WITH CANCER AND WHOSE MEDICALLY
9 NECESSARY TREATMENT ~~[MAY]~~ [IS LIKELY TO] DIRECTLY OR INDIRECTLY CAUSE
10 IATROGENIC INFERTILITY. [COVERAGE FOR STANDARD FERTILITY PRESERVATION
11 SERVICES MUST INCLUDE AT LEAST THREE PLAN YEARS OF STORAGE. IF AN INSURED
12 CHANGES INSURANCE PLANS DURING THE THREE-YEAR PERIOD, THE PRIOR GROUP OR
13 BLANKET DISABILITY INSURER THAT PROVIDED COVERAGE AND THE NEW INSURER ARE
14 NOT RESPONSIBLE FOR THE THREE PLAN YEARS OF STORAGE.]

15 B. A GROUP OR BLANKET DISABILITY INSURER ~~[MAY NOT REQUIRE~~
16 ~~PREAUTHORIZATION FOR STANDARD FERTILITY PRESERVATION SERVICES. A POLICY~~
17 ~~MAY CONTAIN PROVISIONS FOR MAXIMUM BENEFITS AND MAY REQUIRE THAT STANDARD~~
18 ~~FERTILITY PRESERVATION SERVICES BE SUBJECT TO THE SAME DEDUCTIBLES,~~
19 ~~COPAYMENTS, COINSURANCE AND REASONABLE LIMITATIONS AND EXCLUSIONS THAT ARE~~
20 ~~CONSISTENT WITH THIS SECTION]~~ [SHALL PROCESS PRIOR AUTHORIZATION REQUESTS
21 FOR STANDARD FERTILITY PRESERVATION SERVICES AS URGENT AND RESPOND WITHIN
22 SEVENTY-TWO HOURS ON REQUEST].

23 C. A RELIGIOUS EMPLOYER MAY SUBMIT A WRITTEN REQUEST FOR AN
24 EXEMPTION FROM THE REQUIREMENTS OF THIS SECTION TO A GROUP OR BLANKET
25 DISABILITY INSURER, AND THE GROUP OR BLANKET DISABILITY INSURER SHALL
26 GRANT THE EXEMPTION IF THE COVERAGE REQUIRED BY THIS SECTION CONFLICTS
27 WITH THE EMPLOYER'S RELIGIOUS BELIEFS. A RELIGIOUS EMPLOYER THAT OBTAINS
28 AN EXEMPTION SHALL PROVIDE WRITTEN NOTICE OF THE EXEMPTION TO PROSPECTIVE
29 INSURED.

30 D. THIS SECTION DOES NOT PREVENT AN INSURED FROM PURCHASING A
31 SUPPLEMENTAL INSURANCE POLICY THAT COVERS STANDARD FERTILITY PRESERVATION
32 SERVICES AT THE INSURED'S OWN EXPENSE.

33 E. FOR THE PURPOSES OF THIS SECTION:

34 1. "IATROGENIC INFERTILITY" MEANS AN IMPAIRMENT OF FERTILITY THAT
35 IS CAUSED DIRECTLY OR INDIRECTLY BY ~~[SURGERY, CHEMOTHERAPY, RADIATION OR~~
36 ~~OTHER MEDICAL TREATMENT THAT HAS A POTENTIAL SIDE EFFECT OF IMPAIRED~~
37 ~~FERTILITY AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR~~
38 ~~THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE]~~ [MEDICALLY NECESSARY
39 TREATMENT FOR CANCER, SICKLE CELL DISEASE OR LUPUS].

40 2. "RELIGIOUS EMPLOYER" ~~[MEANS AN EMPLOYER THAT BOTH]:~~

41 ~~[(a) IS A CHURCH OR A CONVENTION OR ASSOCIATION OF CHURCHES OR AN~~
42 ~~ELEMENTARY OR SECONDARY SCHOOL THAT IS CONTROLLED, OPERATED OR PRINCIPALLY~~
43 ~~SUPPORTED BY A CHURCH OR BY A CONVENTION OR ASSOCIATION OF CHURCHES.~~

44 ~~[(b) QUALIFIES AS A TAX-EXEMPT ORGANIZATION UNDER SECTION 501(c)(3)~~
45 ~~OF THE UNITED STATES INTERNAL REVENUE CODE.]~~

46 [(a) MEANS A NONGOVERNMENTAL PLAN SPONSOR OR ENTITY THAT, BASED ON
47 SINCERELY HELD RELIGIOUS BELIEFS, OBJECTS TO THE SPONSOR OR ENTITY

1 ESTABLISHING, MAINTAINING, PROVIDING, OFFERING OR ARRANGING FOR COVERAGE
2 OF STANDARD FERTILITY PRESERVATION SERVICES.

3 (b) INCLUDES:

4 (i) A CHURCH, AN INTEGRATED AUXILIARY OF A CHURCH, A CONVENTION OR
5 ASSOCIATION OF CHURCHES OR A RELIGIOUS ORDER.

6 (ii) A NONPROFIT ORGANIZATION.

7 (iii) A CLOSELY HELD FOR-PROFIT ENTITY.

8 (iv) A FOR-PROFIT ENTITY THAT IS NOT CLOSELY HELD.

9 (v) ANY OTHER NONGOVERNMENTAL EMPLOYER.]

10 3. "REPRODUCTIVE AGE" MEANS THE AGE RANGE IN WHICH AN INDIVIDUAL IS
11 DEEMED FERTILE AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY
12 OR THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE.

13 4. "STANDARD FERTILITY PRESERVATION SERVICES":

14 (a) MEANS:

15 (i) OOCYTE AND SPERM PRESERVATION PROCEDURES THAT ARE CONSISTENT
16 WITH ESTABLISHED MEDICAL PRACTICES OR PROFESSIONAL GUIDELINES PUBLISHED BY
17 THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR THE AMERICAN SOCIETY FOR
18 REPRODUCTIVE MEDICINE.

19 (ii) THE STORAGE FOR AT LEAST THREE [PLAN] YEARS OF PRESERVED
20 OVARIAN TISSUE, SPERM AND OOCYTE.

21 (b) INCLUDES CRYOPRESERVATION OF ANY OF THE FOLLOWING:

22 (i) OVARIAN TISSUE.

23 (ii) SPERM.

24 (iii) OOCYTE.

25 <<Sec. 5. Effective date

26 [This act is effective from and after December 31, 2027.]>>

27 Enroll and engross to conform

28 Amend title to conform

CARINE WERNER

1347FloorWERNER1.docx

02/24/2026

6:13 PM

C: SK

130FKMNUX